

March 13, 2007



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous Materials
Safety Administration**

DOT-SP 14454
(FIRST REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain steel tubings which have an inner core containing the hazardous materials listed in paragraph 6 of this special permit. When prepared for shipment as prescribed in this special permit, the steel tubings containing those hazardous materials are exempted from the packaging, marking, labeling and placarding requirements of the Hazardous Materials Regulations (HMR). This special permit provides no relief from the HMR other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subparts D, E and F in that the steel tubing is exempt from marking, labeling and placarding; § 173.24(c), and Subparts E and F of Part 173 in that the packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the applications of Bozel (Europe) and Bozel (South America) dated December 19, 2006 submitted in accordance with § 107.105 and the public proceeding thereon, and additional information dated March 12, 2007.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Aluminum powder, uncoated	4.3	UN1396	II or III
Aluminum powder, coated	4.1	UN1309	III
Antimony powder	6.1	UN2871	III
Antimony compound, inorganic, solid, n.o.s.	6.1	UN1549	III
Calcium	4.3	UN1401	II
Calcium silicide	4.3	UN1405	III
Environmentally hazardous substance, solid, n.o.s.	9	UN3077	III
Flammable solid, inorganic, n.o.s	4.1	UN3178	III
Flammable solid, toxic, inorganic, n.o.s	4.1 (6.1)	UN3179	III
Generic or specific materials listed in Table 172.101 that meet the definition of 4.1, Packing Group III, which are authorized in writing by the Office of Hazardous Materials Exemptions and Approvals prior to the first shipment	4.1	As appropriate	III
Generic or specific materials listed in Table 172.101 that meet the definition of 4.3, Packing Group III, which are authorized in writing by the Office of Hazardous Materials Exemptions and Approvals prior to the first shipment	4.3	As appropriate	III

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Generic or specific materials listed in Table 172.101 that meet the definition of 6.1, Packing Group III, which are authorized in writing by the Office of Hazardous Materials Exemptions and Approvals prior to the first shipment	6.1	As appropriate	III
Metal powder, flammable, n.o.s.	4.1	UN3089	III
Silicon powder, amorphous	4.1	UN1346	III
Sulfur	4.1 9	UN1350 NA1350	III III
Titanium sponge granules or Titanium sponge powders	4.1	UN2878	III
Water-reactive solid, n.o.s.	4.3	UN2813	III
Water-reactive solid, flammable, n.o.s.	4.3 (4.1)	UN3132	III
Zinc powder or Zinc dust	4.3 (4.2)	UN1436	III

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - The hazardous material must be contained within the core of a continuous roll of steel tubing. The steel tubing shall be sealed by means of at least a single interlocking and overlapping water vapor-tight seam which is crimped tightly together by means of the roll-forming equipment.

- (1) The outer diameter of the core-filled steel tubing is limited to a maximum of 25.4 mm (one inch).

- (2) The ends of the core-filled steel tubing must be securely sealed with a suitable water vapor-tight cap.
- (3) The wall thickness of the core-filled steel tubing may not be less than 0.4 mm for tubing with outer diameters greater than 16 mm and may be not less than 0.25 mm for tubing outer diameters of 16 mm or less.
- (4) The quantity of hazardous material shall not exceed 1 kg (2.2 pounds) per meter of core-filled steel tubing.
- (5) The core-filled steel tubing must be continuously coiled on a strong wooden or steel reel or within a steel cage securely affixed on a wooden or metal pallet. The length of any one continuous roll or coil shall not exceed 10,000 meters.
- (6) The reels or cages of core-filled steel tubing affixed to a wooden or metal pallet must further be completely enclosed in moisture-resistant plastic sheeting or plastic shrink-wrap.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this exemption may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. The wooden or steel reel or cage containing the core-filled steel tubing must be marked with "DOT-SP 14454" in letters at least 2 inches high on a contrasting background.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect. Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous

March 13, 2007

materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Bob Richard
Deputy Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SCW:dl